

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SAMY FELIZ and JULIE AQUINO as Proposed
Co-Administrators of the Estate of ALLEN JAMES FELIZ,
deceased, JULIE AQUINO, individually, JULIE AQUINO
as mother and natural guardian of EJF, an infant
and RAYMOND RIVERA,

Plaintiffs,
-against-

SUMMONS

Index No.:

THE CITY OF NEW YORK, SERGEANT JONATHAN RIVERA,
POLICE OFFICER EDWARD BARRETT,
POLICE OFFICER MICHELLE ALMONDZA, and
POLICE OFFICERS JOHN and JANE DOE #1-10.

Defendants,

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Pursuant to CPLR 504(3), Plaintiff designates BRONX County as venue based upon where the cause of action arose.

Dated: New York, New York
July 2, 2020

Yours, etc.,

Robert Vilensky, Esq
RONEMUS & VILENSKY
Attorneys for Plaintiff(s)
112 Madison Avenue, 2nd Floor
New York, New York 10016
(212) 779-7070

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
Corporation Counsel of City of New York
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER EDWARD BARRETT
SERGEANT JONATHAN RIVER
POLICE OFFICER MICHELLE ALMONDZA
POLICE OFFICERS JOHN and JANE DOE #1-10
Corporation Counsel of City of New York
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER EDWARD BARRETT
SERGEANT JONATHAN RIVERA
POLICE OFFICER MICHELLE ALMONDZA
POLICE OFFICERS JOHN and JANE DOE #1-10
One Police Plaza Path
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SAMY FELIZ and JULIE AQUINO as Proposed
Co-Administrators of the Estate of ALLEN JAMES FELIZ,
deceased, JULIE AQUINO, individually, JULIE AQUINO
as mother and natural guardian of EJF, an infant
and RAYMOND RIVERA,

Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

Index No.:

THE CITY OF NEW YORK, SERGEANT JONATHAN RIVERA,
POLICE OFFICER EDWARD BARRETT,
POLICE OFFICER MICHELLE ALMONDZA, and
POLICE OFFICERS JOHN and JANE DOE #1-10.

Defendants,

-----X
Plaintiffs, by and through their attorneys, RONEMUS & VILENSKY, LLP complaining of
the Defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

GENERAL ALLEGATIONS AS TO ALL DEFENDANTS AND PLAINTIFFS

1. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.
2. That at all times hereinafter mentioned, the Plaintiffs SAMY FELIZ and JULIE AQUINO as Proposed Co-Administrators of the Estate of ALLEN JAMES FELIZ, deceased (hereinafter referred to as "Plaintiff Decedent"), JULIE AQUINO, individually, and RAYMOND RIVERA were residents of the County of New YORK, City and State of New York.
3. Plaintiffs Samy Feliz and Julie Aquino have filed an application for Limited Letters of Administration with the Surrogate Court of Bronx County. Said Application is currently pending court approval for their appointment as co-administrators of the Estate of Allen James Feliz.

4. At all times mentioned herein, defendant THE CITY OF NEW YORK (hereinafter "City") was a municipal corporation duly organized and existing under and by the virtue of the laws of the State of New York, and as such is responsible for practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.
5. That at all times hereinafter mentioned Defendants, POLICE OFFICER EDWARD BARRETT (hereinafter "Officer Barrett"), SERGEANT JONATHAN RIVERA (hereinafter "Sergeant Rivera"), POLICE OFFICER MICHELLE ALMONDZA (hereinafter "Officer Almondza"), and POLICE OFFICERS JOHN DOE #1-10 (hereinafter "Officers John and Jane Doe") are being sued herein both in their individual and official capacities, are and were at all times hereinafter mentioned, and particularly on or about October 17, 2019 employed by the City of New York.
6. That at all times hereinafter mentioned Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10 under color of state law, subjected Plaintiff Decedent and Raymond Rivera to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff Decedent and Raymond Rivera of their rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.
7. Prior to commencement of this action and within 90 days of occurrence herein, SAMY FELIZ and JULIE AQUINO as Proposed Co-Administrators of the Estate of ALLEN JAMES FELIZ, served a Notice of Claim in writing, upon the defendant, the City of New York, in accordance with Section 50(e) of the General Municipal Law on October 30, 2019 on behalf of Plaintiff Decedent.

8. Prior to commencement of this action and within 90 days of occurrence herein, Plaintiff Raymond Rivera served a Notice of Claim in writing, upon the defendant, the City of New York, in accordance with Section 50(e) of the General Municipal Law on January 9, 2020.
9. On January 16, 2020 Samy Feliz appeared on behalf of Plaintiff Decedent at a hearing pursuant to Section 50(h) of the General Municipal Law and said hearing was waived.
10. On June 9, 2020, Julie Aquino appeared on behalf of Plaintiff Decedent at a hearing pursuant to Section 50(h) of the General Municipal Law and said hearing was completed.
11. On March 12, 2020 Raymond Rivera appeared at a hearing pursuant to Section 50(h) of General Municipal Law.
12. That the defendants have wholly neglected and refused to make any adjustments or payments thereof and more than 30 days has elapsed since the presentation of the claim.
13. On October 17, 2019 Plaintiff Decedent and Raymond Rivera were travelling in an automobile in Bronx County near E. 211th Street and Bainbridge Avenue. Plaintiff Decedent was operating said vehicle and Raymond Rivera was the passenger.
14. Said vehicle was pulled over by a marked police patrol car because officers falsely alleged Plaintiff Decedent and/or his passenger were allegedly not wearing seatbelts as a ruse to stop the vehicle when the Plaintiff Decedent and his passenger were in fact wearing seatbelts.
15. When Plaintiffs were pulled over, Officer Barrett approached plaintiff's vehicle on the driver's side; Sergeant Rivera approached on the passenger side; and Officer Almondza approached said vehicle behind Officer Barrett also on the driver side.
16. At some point after being pulled over, Plaintiff Decedent was ordered to exit said vehicle then ordered to re-enter said vehicle. Upon re-entering said vehicle, said vehicle was caused to shift forward.
17. Officer Barret then entered said vehicle and began to forcefully repeatedly strike Plaintiff Decedent about his face and body.
18. Sergeant Rivera also entered said vehicle, climbed over Raymond Rivera and used a taser on Plaintiff Decedent.
19. As Officer Barrett continued to strike Plaintiff Decedent about his face and body, Sergeant Rivera fired a shot with his service weapon into the torso to Plaintiff Decedent.
20. As PO Barrett continued to strike Plaintiff Decedent about his face and body, PO Rivera

fired a shot with his service weapon into the torso to Plaintiff Decedent.

21. After Plaintiff Decedent was shot, plaintiff Raymond Rivera was removed from said vehicle and transported to the police precinct and held was several hours and repeatedly questioned and called racial slurs.
22. Plaintiff Raymond Rivera was not told why he was being held, nor was he given an opportunity to make a phone call, or offered any food.
23. There were no charges lodged against plaintiff Raymond Rivera resulting from this traffic stop.
24. There was no evidence vouched from the vehicle.

FIRST CAUSE OF ACTION FOR INJURIES TO ALLEN FELIZ ON BEHALF SAMY FELIZ and JULIE AQUINO as PROPOSED CO-ADMINISTRATORS OF THE ESTATE OF ALLEN JAMES FELIZ AND JULIE AQUINO ON BEHALF OF DECEDENT'S INFANT'S SON EJE

25. Plaintiffs repeat, reiterate, and reallege each and every allegation contained herein as if fully set forth at length herein.
26. That on October 17, 2019 Plaintiff Decedent was caused to sustain severe injuries that resulted in his death.
27. Plaintiff Decedent died as a direct and proximate result of the bullet from Sergeant Rivera's gun.
28. The above mentioned occurrence and the results thereof were caused by the negligence, carelessness and recklessness and wanton acts of the defendants.
29. That no negligence on the part of the Plaintiff Decedent contributed to the occurrence alleged herein in any manner whatsoever.
30. As a direct and proximate result of the aforementioned negligence, carelessness, and recklessness and wanton acts of the defendants, the estate of Allen James Feliz incurred medical expenses and expenses for funeral and burial expenses, all of which has caused it loss and damage.
31. As a direct and proximate result of the aforementioned negligence, carelessness, and recklessness and wanton acts of the defendants, Plaintiff Decedent was wrongfully deprived of the opportunities and enjoyment of his life including, but not limited to, social, cultural and familial opportunities and experiences, and was wrongfully deprived of life itself, all of which has caused him loss and damage.

32. As a direct and proximate result of the aforementioned negligence, carelessness, and recklessness and wanton acts of the defendants, Plaintiff Decedent suffered a permanent and total destruction of his earning capacity.
33. As a direct and proximate result of the aforementioned negligence, carelessness, and recklessness and wanton acts of the defendants, Plaintiff Decedent suffered conscious pain and suffering prior to his death, which has caused him loss and damage.
34. That because of the above stated incident, plaintiffs were damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction as against the defendants, and demands judgment against the defendants together with the costs and disbursements of this action.

**SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF
DECEDENT'S RIGHTS UNDER THE FOURTH, FIFTH, AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION AND NEW YORK
STATE LAW PREDICATED UPON THE ASSAULT, BATTERY, AND USE OF
EXCESSIVE FORCE**

35. Plaintiffs repeat, reiterate, and reallege each and every allegation contained herein as if fully set forth at length herein.
36. That on or about October 17, 2019, Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10, jointly and severally in their capacity as police officers, wrongfully and without reason or probable cause stopped, and seized the decedent's person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was it privileged by law.
37. As a result of the aforementioned actions, Defendants Officer Barrett, Sergeant Rivera, Officer Almondza and Officers John and Jane Does #1-10 deprived the Plaintiff Decedent of his right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.
38. As a result of the aforementioned actions, Defendants deprived Plaintiff Decedent of his right against the use of excessive force against their person secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.
39. The aforementioned acts of defendants were intentional, willful and malicious and

performed with a reckless disregard for and deliberate indifference to Plaintiff Decedent's rights.

40. That by reason of the assault, battery, and detention of Plaintiff Decedent, the Plaintiff Decedent was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.
41. The aforesaid constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1968 and under New York State Law.

THIRD CAUSE OF ACTION FOR ASSAULT UNDER NEW YORK STATE LAW AS TO PLAINTIFF DECEDENT

42. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
43. As a result of the foregoing, Plaintiff Decedent was placed in apprehension of imminent harmful and offensive bodily contact.
44. As a result of defendants' conduct, Plaintiff Decedent suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FOURTH CAUSE OF ACTION FOR BATTERY UNDER NEW YORK STATE LAW AS TO PLAINTIFF DECEDENT

45. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in foregoing paragraphs as if fully set forth herein.
46. Defendants made offensive contact with Plaintiff Decedent without privilege or consent.
47. As a result of defendants' conduct, Plaintiff Decedent suffered physical pain and mentalanguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FIFTH CAUSE OF ACTION AS TO PLAINTIFF RAYMOND RIVERA

48. Plaintiffs repeat, reiterate, and reallege each and every allegation contained above as though set forth at length herein.

49. That on or about October 17, 2019, Defendant CITY, its agents, servants and employees, including but not limited to Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10, wrongfully and falsely arrested, imprisoned and detained plaintiff Raymond Rivera without any right or justifiable grounds therefore.
50. That on or about October 17, 2019 Defendants Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10, jointly and severally in their capacity as a police officers, wrongfully stopped, handcuffed, and seized plaintiff Raymond Rivera about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch plaintiff Raymond Rivera, nor did Plaintiff Raymond Rivera consent to this illegal touching nor was or privileged by law.
51. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10, without any reasonable cause or belief that Plaintiff Raymond Rivera was in fact guilty of any crime.
52. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff Raymond Rivera; that plaintiff Raymond Rivera was conscious of the confinement; plaintiff Raymond Rivera did not consent to the confinement; and that the confinement was not otherwise privileged.
53. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff Raymond Rivera without probable cause, Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10 deprived plaintiff Raymond Rivera of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.
54. As a result of the aforementioned actions, Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10 deprived plaintiff Raymond Rivera of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.
55. As a result of the aforementioned actions, Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10 deprived plaintiff Raymond

- Rivera of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.
56. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's Raymond Rivera's rights.
57. That by reason of the false arrest, imprisonment and detention of plaintiff Raymond Rivera was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.
58. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986.

**SIXTH CAUSE OF ACTION AGAINST DEFENDANT CITY UNDER RESPONDEAT
SUPERIOR AND MONELL PURSUANT TO 42 U.S.C § 1983**

59. Plaintiffs repeat, reiterate, and reallege each and every allegation contained herein as if fully set forth at length herein.
60. All of the acts and omissions by the individual Defendant Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10, described above were carried out pursuant to overlapping policies and practices of the City which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendant City.
61. Defendant City, by its policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.
62. Defendants Officer Barrett, Sergeant Rivera, Officer Almondza, and Officers John and Jane Does #1-10 arrested, incarcerated, and assaulted Plaintiff Decedent and Raymond Rivera in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest, assault, and incarceration (respectively) would jeopardize Plaintiff Decedent's liberty, Life, well-being, safety and constitutional rights.
63. At all times mentioned herein, said police officers were acting under color of law, to wit:

the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

64. On or October 17, 2019, Defendants did stop, seize, assault and commit a battery and grab and ultimately take the life of Plaintiff Decedent during the process in an unlawful and excessive manner.
65. That on October 17, 2019, defendants did stop, seize, arrest and unlawfully imprison plaintiff Raymond Rivera without cause.
66. The above actions of Defendants resulted in the Plaintiff Decedent and Raymond Rivera being deprived of the following rights under the United States Constitution.
- a. Freedom from assault to his person.
 - b. Freedom from battery to his person.
 - c. Freedom from illegal search and seizure.
 - d. Freedom from false arrest.
 - e. Freedom from the use of excessive force during the arrest process.
 - f. Freedom from unlawful imprisonment.
67. The Defendants subjected Plaintiff Decedent and plaintiff Raymond Rivera to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights.
68. Defendant City has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.
69. The direct and proximate results of the Defendants' acts are that Plaintiffs suffered severe and permanent injuries of a psychological nature.
70. The direct and proximate results of the Defendants' acts are that Plaintiff Decedent was forced to lose his life.
71. That as a direct and proximate result of the Defendants' acts Plaintiff Raymond Rivera was forced to endure pain and suffering to his detriment.

**SEVENTH CAUSE OF ACTION AGAINST DEFENDANT CITY FOR
NEGLIGENT SCREENING, HIRING, AND RETENTION UNDER
NEW YORK STATE LAW**

68. Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
69. Upon information and belief, defendant failed to use reasonable care in the screening, hiring and retention of the aforesaid individual defendants who conducted and participated in the violation of Plaintiffs' rights.
70. Defendant City had a duty to hire and retain competent police officers.
71. Defendant City knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.
72. Defendant City breached its duty to hire and retain competent police officers.
73. As a result of the City's breach, the Plaintiffs suffered damages.
74. Thus, Defendant City is liable for negligent hiring and retention of Defendant police officers.

**EIGHTH CAUSE OF ACTION FOR NEGLIGENCE UNDER
NEW YORK STATE LAW**

75. Plaintiff repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
76. Plaintiffs' injuries herein were caused by the carelessness, recklessness and negligence of the defendants and their employees, agents, and servants who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.
77. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.
78. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.
79. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.
80. Consequently, Defendant Police Officers are liable for negligence.
81. Defendant Police Officers acted within the scope of their duties as police officers for Defendant City and in the interest of the City when they arrested Plaintiff.
82. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.
83. Thus, all Defendants are liable for negligence.

**NINTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF
EMOTIONAL DISTRESS UNDER NEW YORK STATE LAW**

90. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
91. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.
92. The aforementioned conduct was committed by defendants while acting within the scope of their employment.
93. The aforementioned conduct was committed by defendants while acting in furtherance of their employment.
94. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to Plaintiffs.
95. As a result of the aforementioned conduct, Plaintiffs suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**TENTH CAUSE OF ACTION FOR NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS UNDER NEW YORK STATE LAW**

96. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
97. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.
98. The aforementioned conduct was committed by defendants while acting within the scope of their employment.
99. The aforementioned conduct was committed by defendants while acting in furtherance of their employment.
100. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to Plaintiff Decedent.
101. As a result of the aforementioned conduct, Plaintiffs suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**ELEVENTH CAUSE OF ACTION FOR JULIE AQUINO ON BEHALF OF HER
INFANT SON EJF FOR LOSS OF SERVICES**

102. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs as if fully set forth herein.
103. The plaintiff JULIE AQUINO was at all pertinent times mentioned herein the lawful guardian and natural mother of plaintiff decedent's minor son, the infant EJF.
104. That by reason of the negligence defendants herein Plaintiff Decedent's minor son, EJF, has suffered the loss of affection, companionship, support, guidance, services, and consortium the type that is provided by a father.
105. That because of the above stated incident, plaintiff JULIE AQUINO is forced to provide support to her infant son without his father.
106. That because of the above stated incident, plaintiff and her infant son are damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction as against the defendants, and demands judgment against the defendant together with the costs and disbursements of this action.

**TWELFTH CAUSE OF ACTION FOR WRONGFUL DEATH ON BEHALF OF
THE ESTATE OF ALLEN FELIZ, DECEASED**

107. Plaintiff repeats and realleges each and every allegation set forth above, all inclusive, with the same force and effect as if more fully set forth at length herewith.
108. Plaintiffs' decedent ALLEN FELIZ died on October 17, 2019, as a result of the negligence of the defendants, their agents, servants, licensees and employees.
109. Plaintiff's decedent is survived by next of kin and distributees.
110. As a result of the foregoing wrongful death, the decedent's next of kin and distributees lost the services, income, support and guidance of the decedent.
111. As a result of the foregoing wrongful death, decedent's estate became liable for and expended money for funeral costs and other expenses.
112. As a result of the foregoing wrongful death, decedent's next of kin and distributees were pecuniarily damaged pursuant to the New York State Estates, Powers and Trust Law in a

sum in excess of all lower courts which would otherwise have jurisdiction over the subject matter.

WHEREFORE, Plaintiffs demand judgment against all Defendants, on each and every Cause of Action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, loss of support, wrongful death, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and in the amount of One Hundred Million (\$100,000,000.00) Dollars and Plaintiffs further demand punitive damages on all causes of action, and in the amount of at least Two Hundred and Fifty (\$250,000,000.00) Dollars or in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
July 2, 2020

Yours, etc.,
Robert Vilensky, Esq
RONEMUS & VILENSKY
Attorneys for Plaintiff(s)
112 Madison Avenue, 2nd Floor
New York, New York 10016
(212) 779-7070

STATE OF NEW YORK, COUNTY OF NEW YORK ss:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state under penalty of perjury that I am one of the attorneys for the Plaintiff(s) in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters I believe to be true. The reason this verification is made by me and not by my client(s), is that my client(s) are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
July 2, 2020

ROBERT VILENSKY